

Calendar Line 1

Case Name: *Rob Millier vs TESLA, INC.*

Case No.: 25CV463413

Petitioner seeks an order enforcing “the judgment entered in this matter pursuant to that certain Order re: Petition to Confirm Arbitration Award issued February 6, 2026” and for an imposition of sanctions on Mark W. Skanes, Attorney for Respondent, pursuant to Code of Civil Procedure section 177.5. The petition is DENIED.

As Respondent notes, after granting the petition to confirm the arbitration award, the Court ordered that Petitioner “shall submit a proposed judgment consistent with this order, accompanied by the necessary FORM EFS-020 within 10 days of the date of the hearing” and Petitioner did not do so. Confirmation of an arbitration award is an option that a party to an arbitration may, but is not required to, pursue. Confirmation allows a party to have a judgment entered in conformity with the award and to enforce that judgment like any other judgment of the court in which it is entered. Perfecting this option is responsibility of the party seeking the confirmation and judgment. Here, Petitioner saw fit to file a motion to enforce a judgment just over 60 days from the hearing confirming the award, but neglected to submit a proposed judgment for signature and entry within 10 days of that hearing in compliance with the Court’s order. Accordingly, Petitioner has not perfected the option of seeking confirmation and judgment and his motion is improper and is DENIED.

Petitioner’s request for sanctions is similarly DENIED.

Respondent’s request for sanctions (reasonable attorney’s fees) is also DENIED as it lacks citation to a statutory or other legal basis and is not supported by a declaration supporting the request and any specific amount.

The Court will prepare the final order.

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Calendar Line 2

Case Name: *Stonecrest Acquisitions, LLC v. David Schultz, et al.*

Case No.: 25CV477456

Before the Court is Defendant David Schultz's ("Defendant" or "Mr. Schultz") demurrer to the Complaint filed by Plaintiff Stonecrest Acquisitions, LLC ("Plaintiff" or "Stonecrest").

This is an action for breach of contract. According to the allegations of the Complaint, on July 7, 2025, Plaintiff and Defendant entered into a "Property Purchase and Sale Agreement" (the "Agreement") pursuant to which Defendant agreed to sell his interest in real property located at 5324 Borneo Circle in San Jose to Plaintiff for \$360,000. (Complaint, ¶¶ 2, 7, 8.) Escrow was to be opened within three days of the execution of the Agreement, however, Mr. Schultz and co-defendant Sandra Lynn Hammack ("Ms. Hammack") allegedly conspired to interfere with the sale and took actions to prevent the close of escrow. (*Id.*, ¶ 9.)

On August 6, 2025, Mr. Schultz's Homeowners Association ("HOA") received a payoff demand for full payment for the outstanding balance on the HOA collection amount, but Ms. Hammack took deliberate steps to prevent the HOA from satisfying that demand. (Complaint, ¶ 10.)

Based on the foregoing, Plaintiffs initiated this action with the filing of the Complaint on October 13, 2025, asserting claims for: (1) breach of contract (against Mr. Schultz); (2) intentional interference with contractual relations (against Ms. Hammack); (3) negligent interference with contractual relations (against Ms. Hammack); and (4) conspiracy (against all defendants). Defendant demurs to the first cause of action on the ground of failure to state facts sufficient to constitute a cause of action and uncertainty and demurs to the fourth cause of action on the ground of uncertainty. (Code Civ. Proc., § 430.10, subds. (e) and (f). Plaintiff opposes the motion.

Defendant's demurrer to the first and fourth causes of action on the ground of uncertainty is **OVERRULED**. "A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made." (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 145-146.) Such a demurer "is strictly construed even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) To avoid a demurrer for uncertainty, a pleading merely needs to "set forth the essential facts of [the] case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of [the] cause of action." (*Semole v. Sansoucie* (1972) 28 Cal.App.3d 714, 719, internal citations and quotations omitted.) Thus, a demurer for uncertainty "should not be sustained if the allegations are sufficiently clear to apprise the defendant of the issues that must be met, even if the allegations of the complaint may not be as clear and as detailed as might be desired." (*Merlino v. West Coast Macaroni Mfg. Co.* (1956) 90 Cal.App.2d 106, 108.) The first and fourth causes of action are both sufficient clearly to apprise Defendant of the nature of each claim, far from "ambiguous" as he claims, and any specific uncertainties can be clarified in discovery.